

INDIAN ELECTRICITY JURISPRUDENCE · A WORKING DIGEST

# The U.P. Electricity Supply Code, 2005 in the Courts

1995 – 2026

*Issues Framed, Treated Chronologically, and Traced to Authority*

---

Built on a corpus of **263 decisions** — the Supreme Court of India,  
the High Court of Judicature at Allahabad, and other High Courts  
— digested into 340 ratios, 229 principles and 418 authorities.

**PART I – PART II · CHAPTERS 1 – 2**

WORKING DRAFT FOR REVIEW



## Foreword & Methodology

---

This digest reads a large body of decided cases on the U.P. Electricity Supply Code, 2005 not as a chronological list of judgments but as a set of *questions* the courts have had to answer. Each chapter opens by framing an issue as a question; the answer is then built up in the order the courts actually gave it, so that the reader can watch a rule form, wobble, correct itself, and settle. Where a High Court view was later approved, doubted or overtaken by the Supreme Court, the apex authority is placed at the head of the discussion and the subordinate material read in its light.

**The corpus.** The digest is built on 263 decisions decided between 1995 and 2026. Each decision carries a stable identifier of the form **SCJ-000**, used throughout for cross-reference. The set spans the foundational Supreme Court authorities (Isha Marbles, DVS Steels, Seetaram Rice Mill, Anis Ahmad, K.C. Ninan, Thomas Joseph), the very large Allahabad High Court jurisprudence that applies them to the U.P. Code, and a selection of other High Court and regulatory decisions used where they illuminate a point.

**Sources and fidelity.** The analysis rests on structured summaries of every case — the framed issue, the ratio, the operative facts, the disposition, and the treatment of every authority cited. For the marquee decisions the full judgment text has been used directly. Holdings reproduced in the ruled boxes are the courts' own, verbatim from the summaries; nothing in a box is paraphrase.

**Two-tier subject matter.** The governing instruments are the Electricity Act, 2003 (the primary Act) and the U.P. Electricity Supply Code, 2005 (delegated legislation specified by the State Commission under Section 50 read with Section 181). Much of the litigation turns on the relationship between the two, so the digest opens there.

**Companion reference volumes.** This narrative digest is accompanied by four categorised reference tables, each built from the same corpus and organised on the identical fourteen-category scheme used here: the *Headnote Digest* (every judgment's headnote, verbatim), the *Ratio Digest* (all 340 holdings), the *Principles Digest* (229 ratio labels), and the consolidated *Table of Authorities* (418 authorities, 496 citations). Where this text says “see the Ratio Digest, category H,” it refers to those volumes.

# How to Use This Digest

---

|                     |                                                                                                                                                          |
|---------------------|----------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>Framed issue</b> | Each numbered <b>Issue</b> states the legal question the courts answered, phrased as a question. The discussion that follows answers it chronologically. |
| <b>SCJ-115</b>      | The corpus identifier for a case. Use it to find the same decision in any of the four companion reference volumes.                                       |
| <b>SC</b>           | Marks a Supreme Court decision. Unmarked decisions are of the Allahabad High Court unless the citation says otherwise.                                   |
| <b>Ruled box</b>    | A <b>Holding</b> box carries the court's operative ratio, verbatim. A box ruled in dark navy marks a binding Supreme Court holding.                      |
| → <b>category B</b> | A pointer to the category in the companion reference volumes where the fuller entry is found.                                                            |

# Table of Abbreviations

---

**the Act / EA 2003** — the Electricity Act, 2003

**the Code / the Supply Code** — the U.P. Electricity Supply Code, 2005

**IEA 1910** — the Indian Electricity Act, 1910

**ESA 1948** — the Electricity (Supply) Act, 1948

**UPERC / the Commission** — the U.P. Electricity Regulatory Commission

**the licensee / distribution licensee** — the distribution company (PVVNL, DVVNL, MVVNL, PuVVNL, KESCO, UPPCL)

**CGRF / the Forum** — Consumer Grievance Redressal Forum (s.42(5))

**the Ombudsman** — the Electricity Ombudsman / Vidyut Lokpal (s.42(6))

**UUE** — unauthorised use of electricity (s.126)

**s.126 / s.127 / s.135** — sections of the Electricity Act, 2003

**Clause 4.4 etc.** — clauses of the U.P. Electricity Supply Code, 2005

**IBC** — the Insolvency and Bankruptcy Code, 2016

**DB** — Division Bench · **SLP** — Special Leave Petition

**SCJ-000** — this digest's stable case identifier

# Master Table of Framed Issues — Parts I–II

| ISSUE                                                                                   | QUESTION                                                                                                                                                                  | LEAD AUTHORITY                                                                           |
|-----------------------------------------------------------------------------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------|------------------------------------------------------------------------------------------|
| <b>PART I — FOUNDATIONS · CHAPTER 1: THE STATUTORY ARCHITECTURE</b>                     |                                                                                                                                                                           |                                                                                          |
| 1                                                                                       | What is the source and scope of the Supply Code — is it confined to the subjects listed in Section 50, and is a fiscal/protective clause such as Clause 4.49 intra vires? | Suvidha Engineers <b>255</b> ; Thomas Joseph <b>SC</b> <b>147</b>                        |
| 2                                                                                       | Can the Code travel beyond the Act? The Section 174 overriding effect and the ultra vires ceiling on delegated legislation.                                               | Vijay Pal Singh <b>227</b> ; Modern Rice Mill <b>059</b> ; DVVNL v. Prakancha <b>015</b> |
| 3                                                                                       | Is access to electricity protected by Article 21, and what follows for arbitrary refusal or disconnection?                                                                | Devendra Sharma <b>016</b> ; Divya Sahani <b>020</b>                                     |
| <b>PART II — GETTING A CONNECTION · CHAPTER 2: THE DUTY TO SUPPLY AND WHO MAY APPLY</b> |                                                                                                                                                                           |                                                                                          |
| 4                                                                                       | Is the Section 43 duty to supply absolute? To whom is it owed — owner or occupier — and for what?                                                                         | K.C. Ninan <b>SC</b> <b>037</b> ; Seema Mansoor <b>115</b>                               |
| 5                                                                                       | Can a tenant or occupier obtain a connection without the owner's consent? The indemnity-bond route under Clause 4.4, and its limits.                                      | Seema Mansoor <b>115</b> (correcting Iftakhar Ahsan <b>236</b> )                         |

The master table continues in later Parts (Arrears & Transferee Liability; Metering; Billing & Recovery; Unauthorised Use; Theft; Fora & Remedies), tracking the fourteen categories of the companion volumes.

## The Statutory Architecture: the Act, the Code, and their Hierarchy

Every dispute in this digest is played out on a two-tier field. Above sits the Electricity Act, 2003 — a self-contained parliamentary code for the generation, transmission, distribution and use of electricity. Beneath it sits the U.P. Electricity Supply Code, 2005 — delegated legislation “specified” by the State Commission under Section 50 of the Act, read with the Commission's general regulation-making power in Section 181. Because so much of the litigation is really an argument about which instrument governs, and how far the junior instrument may go, the digest begins with the architecture itself.

### Issue 1

**What is the source and scope of the Supply Code — is it confined to the subjects listed in Section 50, and is a fiscal or protective clause such as Clause 4.49 *intra vires*?**

The first line of attack on any inconvenient clause of the Code is that the clause is *ultra vires* — that Section 50, which authorises the Commission to specify a Supply Code, enumerates a closed list of subjects (recovery of charges, billing intervals, disconnection, restoration, tamper-prevention, entry) into which the impugned clause does not fit. That argument was pressed, and rejected, in *Suvidha Engineers India Ltd. v. Paschimanchal Vidyut Vitran Nigam Ltd.* (2009 SCC OnLine All 1773; Ashok Bhushan and R.A. Singh, JJ.) **SCJ-255**. The consumer there, resisting a demand for a bank guarantee under Clause 4.49 as a condition of enhanced load, contended that Clause 4.49 lay outside Section 50 and therefore outside the Commission's power.

The Division Bench held that the Supply Code is not confined to the subjects enumerated in Section 50 at all. It is, in substance, a compilation of regulations traceable to the various heads of Section 181(2)(p)–(x) and to the Commission's general power in Section 181(1); the word “supply” in Section 86(1) is read liberally to take in ancillary measures for protecting and preserving revenue, and the power to legislate on a substantive topic subsumes matters ancillary to it. Clause 4.49, being a protective provision rather than a recovery mechanism, was well within power, and offended neither Section 127(2) nor Section 56(2) nor the power of judicial review.

### HOLDING · SUVIDHA ENGINEERS **SCJ-255**

*M/s Suvidha Engineers India Ltd. v. PVVNL* · 2009 SCC OnLine All 1773

“The Supply Code specified under Section 50 is a compilation of regulations traceable to Section 181(2)(p)–(x) and the general power in Section 181(1); the headings, marginal notes and Statement of Objects confirm this. ‘Supply’ in Section 86(1) is read liberally to include ancillary measures for protecting/preserving revenue, and the power to legislate on a substantive topic subsumes ancillary matters.”

If *Suvidha Engineers* tells us how *wide* the delegated power is, the Supreme Court has told us where its outer wall stands. In *Kerala State Electricity Board v. Thomas Joseph* (2022) 8 SCC 723; Dinesh Maheshwari and J.B.

Pardiwala, JJ. **SC** **SCJ-147** the Court struck down Regulation 153(15) of the Kerala Supply Code — a provision that purported to exempt unauthorised additional load in the same premises under the same tariff from being “reckoned as unauthorised use” — as *ultra vires* Section 126 of the Act. Delegated legislation made under Section 50 read with Section 181(2)(x), the Court held, can supplement but not *supplant* the parent Act, and cannot carve out a substantive exemption from a liability that Parliament itself imposed. A Supply Code, echoing the Court's own earlier ruling in *U.P. Power Corporation Ltd. v. Anis Ahmad*, is confined to billing, recovery, disconnection, restoration and tamper-prevention; it “need not provide, and does not relate to,” the assessment of unauthorised-use charges, which lives exclusively in the self-contained scheme of Sections 126–127.

**HOLDING · SUPREME COURT OF INDIA**

**Kerala State Electricity Board v. Thomas Joseph** · (2022) 8 SCC 723 **SC**

Regulation 153(15) is *ultra vires* Section 126 and invalid: “delegated/subordinate legislation made under Section 50 (read with Section 181(2)(x)) can only supplement, not supplant, the parent Act, and cannot create a substantive exemption from Section 126 liability that the Parliament itself did not provide.”

Read together, the two decisions fix the boundaries of the field. The Code may range widely across the Commission's regulation-making heads and may add protective, procedural and machinery provisions that the bare text of Section 50 does not spell out (*Suvidha Engineers*); but it may not contradict, dilute or exempt from a substantive liability created by the Act itself (*Thomas Joseph*). That is the two-sided rule against which every *vires* argument in this digest is measured. → [category A of the companion volumes](#).

**A pleading caveat.** A challenge to the *vires* of a clause must be properly raised and founded. In *Narendra Singh Panwar v. PVVNL* **SCJ-090** (2023) the Court declined to entertain a *vires* attack advanced without a pleaded foundation — *vires* is not a point to be picked up in argument.

**Issue 2**

## **Can the Code travel beyond the Act? The Section 174 overriding effect and the *ultra vires* ceiling.**

The ceiling identified in *Thomas Joseph* had already been applied, years earlier and in the sharpest possible form, by the Allahabad High Court to the U.P. Code itself. In the twin decisions in *Vijay Pal Singh v. Dakshinanchal Vidyut Vitran Nigam Ltd.* (2010 SCC OnLine All 4452 and 3985; Vijay Manohar Sahai and Raj Mani Chauhan, JJ.) **SCJ-227** / **SCJ-228**, the unamended Code prescribed a theft assessment at *three* times the tariff, while Section 126(6) of the Act capped assessment at one-and-a-half times. Because Section 174 gives the Act overriding effect, and the Code is subordinate legislation that “cannot travel beyond” the Act, the three-times rate was held *ultra vires* and the assessment re-cast at 1.5 times.

**HOLDING · VIJAY PAL SINGH (TWINS) SCJ-227 / 228**

**Vijay Pal Singh v. DVVNL** · 2010 SCC OnLine All 4452

“Section 174 of the Act gives it overriding effect, and the Code, being subordinate legislation framed under the Act, cannot travel beyond it... the three-times rate [was] contrary to Section 126(6).”

The overriding effect in Section 174 is, however, a shield for the Act, not a sword for the licensee. It operates “only for matters provided under” the Act, and does not sweep away remedies the Act never purported to occupy. In *DVVNL v. Prakancha Metal Works* (AIR 2012 Allahabad 176; Sudhir Agarwal, J.) [SCJ-015](#) the Court held that Section 174 does not oust a Lok Adalat's or a consumer forum's power to award damages for a wrongful disconnection, because Section 50 never empowered the Code to ascertain such damages in the first place; the CGRF machinery (Clause 7.10, Clauses 7.7.1–7.7.5) reaches supply-related grievances, not tortious damages. The Act is supreme within its field — but the field has edges.

Two further threads complete the picture of a hierarchy policed by ordinary canons of construction:

**The Act is a complete code within its own subjects.** In *Executive Engineer v. Pacific Promoter* (2017 SCC OnLine All 3167; Sunita Agarwal, J.) [SCJ-207](#) the Court held that civil liability for unauthorised use is imposed *only* through a Section 126 assessment (appealable under Section 127), while theft under Section 135 is triable by the Special Courts under Section 153; the Code (Chapters 6 and 8) supplies the procedure, and Section 145 bars the civil court. There is no room for a parallel civil suit.

**Ordinary interpretive canons apply to the Code.** A marginal heading is not a legitimate aid to construction and does not cut down the substantive width of a clause: in *Modern Rice Mill v. MVVNL* [SCJ-059](#) the heading “Defective Meters” was held not to confine Clause 5.6 to meters already known to be defective, and where the Act's rate differs from the Code's, “that statutory rate prevails.” The Code must be read as a whole, not piecemeal (*Satya Narayan v. UPPCL* [SCJ-113](#)); and, being the consumer's protection against a monopoly supplier, it is to be construed liberally in the consumer's favour — a canon the Supreme Court itself applied to a State Supply Code in *Jharkhand SEB v. Ramkrishna Forging* (AIR 2021 SC 2184) [SC](#) [SCJ-035](#).

### Issue 3

## Is access to electricity protected by Article 21, and what follows for arbitrary refusal or disconnection?

Running beneath the statutory architecture is a constitutional floor. The Allahabad High Court has repeatedly located the supply of electricity within the right to life with dignity under Article 21, and has used that location to convert an unlawful refusal or disconnection from a mere statutory breach into a constitutional wrong. In *Devendra Sharma v. State of U.P.* (Sunil Ambwani and Pankaj Mithal, JJ., 2011) [SCJ-016](#) the Court held that a validly sanctioned connection, on which bills are regularly paid, may be disconnected *only* on grounds authorised by the Act and the Code — theft, unauthorised use, non-payment — and that disconnection for an extraneous or malafide reason (there, a landlord-tenant dispute) is “not merely a statutory breach but a violation of the right to life under Article 21.”

The same principle governs refusal. In *Divya Sahani v. State of U.P.* (Pankaj Naqvi and Piyush Agrawal, JJ., 2021) [SCJ-020](#) the Court held that neither Clause 4.4 nor anything else in the Code permits refusal of a connection merely because the premises are the subject of a pending civil dispute — a connection confers no title (Note-3, Annexure 4.1) — and that refusal on that ground alone is “dehors the law and offends the right to live with dignity under Article 21.” The constitutional overlay does not enlarge the consumer's statutory entitlement; but where the licensee acts outside the Act and the Code, Article 21 raises the stakes of the illegality and sharpens the writ court's response.

---

**Chapter 1 in a sentence.** The Code is wide but subordinate: it may add machinery and protective provisions across the Commission's regulation-making heads (*Suvidha Engineers*), but may neither exceed a rate fixed by the Act (*Vijay Pal Singh*) nor exempt from a liability the Act creates (*Thomas Joseph*); the Act overrides only within its own field (*Prakancha*); and beneath both lies an Article 21 floor against arbitrary refusal and disconnection (*Devendra Sharma, Divya Sahani*).

## The Duty to Supply and Who May Apply

With the hierarchy settled, the digest turns to the threshold transaction: obtaining a connection. The governing provision is Section 43 of the Act — the duty of every distribution licensee to supply, on application, to the owner *or occupier* of any premises in its area of supply — worked out through Clauses 4.1 and 4.4 of the Code. Two questions have generated almost all the litigation: how far the duty binds, and whether a person who is not the owner may compel a connection over the owner's head.

### Issue 4

#### Is the Section 43 duty to supply absolute? To whom is it owed, and for what?

The starting point is the breadth of the statutory duty. Section 43(1) obliges the licensee to give supply within one month of a completed application by the “owner or occupier” of premises, and the Code, at Clause 2.2(oo), defines an occupier to include an authorised person in occupation. The duty is real and enforceable: failure attracts a daily penalty, and the courts have not hesitated to issue mandamus to compel it (below, Issue 5).

But the duty is not unconditional, and the Supreme Court has now said so authoritatively. In ***K.C. Ninan v. Kerala State Electricity Board*** (2023) SCC OnLine SC 603; Dr D.Y. Chandrachud, CJI, Hima Kohli and P.S. Narasimha, JJ. **SC SCJ-037** — a decision whose main work on arrears is taken up in Chapter 3 — the Court laid down the frame within which the whole duty operates. The duty under Section 43, it held, is *not absolute*: it is subject to the charges and compliances stipulated by the utility as part of the application for supply, and it is owed with respect to the owner or occupier of *particular premises*. One becomes a “consumer” only for the premises for which supply is sought and provided — a “consumer-premises synergy” — so that an application for the same premises earlier supplied is a reconnection, while a different premises makes it a fresh connection even for the same person.

#### HOLDING · SUPREME COURT OF INDIA

***K.C. Ninan v. Kerala State Electricity Board*** · (2023) SCC OnLine SC 603 **SC**

“The duty to supply under s.43 is not absolute and is subject to the charges and compliances stipulated by the utility... it is owed to the owner or occupier of particular premises, and one becomes a ‘consumer’ only with respect to those premises for which electricity is sought and provided.”

Two corollaries of this framing recur throughout the digest. First, because the duty is owed “subject to... compliances,” a licensee may lawfully attach conditions to supply — the completion of formalities, the payment of proper charges, and (as Chapter 3 shows) in defined circumstances the clearing of arrears on the premises. Second, because the duty runs to *premises* and not to a person at large, questions of who is entitled to apply, and of what attaches to the premises, are never far apart. The balance of this chapter takes the first of those: who may apply.

### Issue 5

## Can a tenant or occupier obtain a connection without the owner's consent?

### The indemnity-bond route under Clause 4.4, and its limits.

No question in this corner of the Code has produced more litigation, or a cleaner example of a rule correcting itself, than whether a tenant can be refused a connection because the landlord will not consent. The friction is built into Clause 4.4 itself: Clause 4.4(a)(i) lists the owner's consent (Annexure 4.3) among the documents ordinarily required, yet the Code simultaneously supplies Annexure 4.2 — an indemnity bond that an occupier who *cannot* obtain the owner's consent may execute in its place. Whether the consent was a hard pre-condition or merely one of two alternative routes divided the Court for a time.

**The high-water mark of the “consent-is-mandatory” view.** In *Iftakhar Ahsan v. State of U.P.* (2014 SCC OnLine All 81; A.P. Sahi and Anil Kumar Agarwal, JJ., 3 January 2014) [SCJ-236](#) the Court read Clause 4.4(a)(vi) as making the owner's consent a *mandatory* pre-condition, and refused a mandamus to an occupier who lacked it — the more so as the clause was unchallenged and the landlord was not impleaded. Earlier Division Bench authority (*Ravi Shankar Giri; Tanveer Azam*) had taken the same line.

**The correction.** Within months the position was reversed. In *Seema Mansoor v. U.P. Power Corporation Ltd.* (Krishna Murari and Vijay Lakshmi, JJ., 26 May 2014) [SCJ-115](#) a differently-constituted Division Bench read Clause 4.4 as offering *either* the owner's consent (Annexure 4.3) *or* the occupier's indemnity bond (Annexure 4.2). Since Section 43 casts the duty to supply to an owner *or occupier*, and Clause 2.2(oo) brings a tenant within “occupier,” a licensee cannot refuse a connection merely because a landlord — often one using disconnection as leverage in a rent dispute — withholds consent; the contrary reading would nullify Rent Control Act protections and is against public policy. The Court expressly held that the earlier decisions, including *Iftikhar Ahsan*, having failed to notice Sections 42/43 and Annexure 4.2, “do not lay down the correct law.”

#### HOLDING · THE CORRECTIVE · SEEMA MANSOOR [SCJ-115](#)

*Seema Mansoor v. U.P. Power Corporation Ltd.* · Allahabad HC (DB), 26 May 2014

Reading Clause 4.4 as providing “either owner's consent OR an occupier's indemnity bond, a licensee cannot lawfully refuse connection to a tenant merely because a landlord... withholds consent.... Two prior Division Bench decisions... having failed to notice ss.42/43 of the Act and Clause 4.4(a)(i)/Annexure 4.2 of the Code, do not lay down the correct law.”

Two days later the same Bench applied the rule in *Radhe Shyam Singh v. State of U.P.* (28 May 2014) [SCJ-210](#), issuing a mandamus for a tenant's connection and holding a landlord's refusal — there, pressure to vacate — no ground to refuse, on the authority of the Supreme Court in *Chandu Khamaru v. Nayan Malik* and *Dr. Meena Chaudhary v. BSES Rajdhani*.

**Consolidation.** *Seema Mansoor* has since hardened into settled law through a long line of Division Bench decisions, each refusing to let an owner's silence defeat an occupier's statutory right and directing the licensee to process the application on an indemnity bond:

*Dr. Mamta Tripathi v. State of U.P.* [SCJ-190](#) (2015) — in an owner-occupier dispute, absence of the landlord's consent is no bar; the application must be processed on an Annexure 4.2 bond.

*Gaurav Sharma v. State of U.P.* [SCJ-027](#) (2018) — the object of the bond is only to exclude a trespasser or house-grabber; a family dispute or the owner's want of consent is no ground to refuse a genuine occupier (a son

in separate possession).

**Husna Bano v. State of U.P.** [SCJ-033](#) (2019) — possession may be shown by a Ration Card and Aadhaar (cash rent often leaving no receipt); the bond is not a document of title and a connection does not bar an eviction suit.

**Anand Kumar v. State of U.P.** [SCJ-006](#) (2023); **Deepak Jain v. State of U.P.** [SCJ-212](#) (2023) — following *Seema Mansoor*; the application to be decided, after hearing the stakeholders, within four weeks.

**The limits of the rule.** The indemnity-bond route is a right for a genuine occupier, not a device for anyone. Four qualifications keep it within bounds:

**1 Proof of occupancy is still required.** The bond does not dispense with proof that the applicant is in lawful occupation. In **DVVNL v. Permanent Lok Adalat** [SCJ-249](#) (2016) the Court quashed an award granting a connection on a bare indemnity bond where the applicant — neither owner (the property stood in his father's name) nor able to produce a power of attorney, rent receipt or registered lease — had shown no proof of occupancy. Clause 4.4 requires *both* a bond (in lieu of consent) *and* proof of occupancy.

**2 Clean hands.** A claimant who suppresses an adverse finding on his own status will be turned away. In **Vandana Srivastava v. PuVVNL** [SCJ-171](#) (2017) the petitioner concealed a trial court's finding that she had failed to establish tenancy even *prima facie*; the writ court declined relief for want of clean hands.

**3 The bond does not authorise forcing lines over an objecting owner's premises.** The occupier's right to a connection is not a right to run the licensee's works across a resisting owner's property without more. In **Daya Nand Sharma v. State of U.P.** [SCJ-222](#) (2022) the Court, staying a contempt-court direction that had ordered installation within 72 hours over the owner's objection, held that where an owner objects to supply over his premises the licensee must obtain the District Magistrate's or Commissioner's permission under the proviso to Rule 3(b) of the Works of Licensees Rules, 2006. An order directing a connection “ignoring the objection of the landlord” does not, by itself, decide occupation or authorise overriding the owner's resistance.

**4 Dues attributable to the occupied portion must be paid.** The right is to supply, not to free supply. In **Teena Sehgal v. State of U.P.** [SCJ-199](#) (2026) an occupier of the undisputed ground floor was granted a connection on an Annexure 4.2 bond, but only against payment of the dues attributable to that portion (fixed by the Court at Rs. 1,20,000, by instalments) and of regular bills.

**A distinction to keep in view.** All of the foregoing concerns a *new* connection. Clause 4.4 governs the processing of new-connection applications; it is not a warrant to *disconnect an existing* one. In **Devendra Sharma** [SCJ-016](#) (Issue 3 above) the Court held that a landlord-tenant dispute is no ground to cut a validly sanctioned connection on which bills are paid — a valid connection may be severed only on a ground the Act and the Code authorise. The threshold questions of who may *obtain* supply and when supply may be *withdrawn* are governed by different provisions and must not be conflated.

**The rule as it now stands.** A tenant or occupier has a statutory right to a new connection under Section 43 read with Clause 4.4, and the owner's refusal of consent is no bar: the occupier may proceed on an Annexure 4.2 indemnity bond *in lieu* of the owner's consent (*Seema Mansoor*). But the right belongs to a genuine occupier who (i) proves lawful occupancy (*Permanent Lok Adalat*), (ii) comes with clean hands (*Vandana Srivastava*), (iii) does not thereby acquire a licence to force works over an objecting owner without the DM's permission (*Daya Nand Sharma*), and (iv) clears the dues attributable to the occupied portion (*Teena Sehgal*). Consistently with *K.C. Ninan* (Issue 4), the duty is real but conditional. → [category B of the companion volumes](#).

---

**Looking ahead.** *K.C. Ninan's* second and larger holding — that a Condition of Supply may require a new owner to clear the previous owner's arrears as a precondition to supply, and may fasten a statutory charge on the premises — belongs to the next chapter, where the duty to supply meets the arrears that run with the premises.

[ End of the draft — Parts I–II, Chapters 1–2. Chapter 3 (Arrears & Transferee Liability) follows. ]